

CONTRACT AGREEMENT

THIS AGREEMENT made the day of

Between **Memphis 2 (DC2) Pte. Ltd.** of 1 HARBOURFRONT AVENUE, #18-01 KEPPEL BAY TOWER, SINGAPORE 098632 (hereinafter called “the Employer”) of the one part,

and **[Contractor]** of [Address] (hereinafter called “the Contractor”) of the other part.

Whereas the Employer desires that the Works known as **THE MAIN CONTRACT WORKS of PROPOSED ADDITIONS & ALTERATIONS TO AN EXISTING DEVELOPMENT WITH THE NEW ERECTION OF A 7-STOREY SINGLE-USER DATA CENTRE WITH UNDERGROUND FUEL STORAGE TANKS ON LOT 11383V MK24 AT 82 GENTING LANE** should be executed by the Contractor, and has accepted a Tender by the Contractor for the execution and completion of these Works and the remedying of any defects therein.

THE EMPLOYER AND THE CONTRACTOR AGREE as follows:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.
2. The following documents shall be deemed to form and be read and construed as part of this Agreement. The priority of the contract documents is as follows:
 - a. Contract Agreement
 - b. The Letter of Acceptance dated [date]
 - c. The Letter of Tender dated [date]
 - d. the Form of Tender;
 - e. the Instructions and Conditions of Tendering;
 - f. the Contract Sum Analysis, General Conditions and Preliminaries, Schedule of Rates;
 - g. the Particular Conditions;
 - h. the Contractor's Proposal; and
 - i. any other documents forming the Contract;
3. In consideration of the payments to be made by the Employer to the Contractor as hereinafter mentioned, the Contractor hereby covenants with the Employer to design, execute and complete the Works and remedy any defects therein, in conformity with the provisions of the Contract.

4. The Employer hereby covenants to pay the Contractor, in consideration of the design, execution and completion of the Works and the remedying of defects therein, the Contract Price at the times and in the manner prescribed by the Contract.

In Witness whereof the parties hereto have caused this Agreement to be executed the day and year first before written in accordance with their respective laws.

SIGNED by
for and on behalf of the Employer in the
presence of

SIGNED by
for and on behalf of the Contractor in the
presence of

Witness :
Name :
Address :
Date :

Witness :
Name :
Address :
Date :

Letterhead

[Specimen]

Our Ref: [____]

Private and Confidential

[____] ("Contractor")

BY EMAIL & POST

Attention: [____]

(hereinafter referred to as the "Contractor")

Dear Sir/Mdm,

LETTER OF ACCEPTANCE ("LOA")

**PROJECT GERAS 2 BUILDING 3 - PROPOSED 7 STOREYS DATA CENTER AND
66kV ELECTRICAL SUBSTATION WITH UNDERGROUND FUEL TANKS ON
LOT 06205N MK24 AT 82 GENTING LANE
("MAIN CONTRACT WORKS")**

We refer to your original tender submission dated [____], the subsequent revised tender submissions through Post Tender Clarification (PTC) No. [____] respectively (together, the "**Final Offer**"), and the tender clarifications and discussions up to and including [date] for the design, execution and completion of the Works comprising the above-named Contract and remedying of defects therein so that they are fit for the purposes defined in the Contract, all in conformity with the terms and conditions contained in the Contract.

We have pleasure in accepting your Tender for the Lump Sum Accepted Contract Amount of **SGD**[_____].

**SINGAPORE DOLLAR [_____]
ONLY**

which is exclusive of Goods and Service Tax ("GST").

Details of the accepted contract amount is as following table

ITEM	DESCRIPTION	AMOUNT(S\$)	REMARKS
A	Main contract sum		
1	Preliminaries	[_____]	
2	Provisional sums	[_____]	
3	Site Preparation and Earthworks	[_____]	
4	Structural works	[_____]	
5	Architectural works	[_____]	
6	External works	[_____]	
7	Electrical works	[_____]	
8	Mechanical works	[_____]	
9	Fire Protection works	[_____]	
10	Plumbing and Sanitary works	[_____]	
11	Information Communication Technology System	[_____]	
12	Major Equipment		
	(a)	[_____]	
	(b)	[_____]	
	(c)	[_____]	
	(d)	[_____]	
	(e)	[_____]	
13	Security works	[_____]	
14	Design Fees	[_____]	
	TOTAL ACCEPTED CONTRACT AMOUNT	S\$[_____]	
15	Maintenance Works	[_____]	

In consideration of you properly and truly performing the Contract, we agree to pay you the Accepted Contract Amount or such other sums to which you may become entitled under the terms of the Contract, at such times and as prescribed by the Contract.

Submittals:

You undertake to submit the following documents within Fourteen (14) days upon receipt of this LOA for the Employer's approval:

- a) Insurance policies in accordance with Clauses [___] of the Conditions of Contract;
- b) Performance Security in accordance with Clause [___] of the Conditions of Contract;
- c) Letter of Undertaking for Restriction of Employment of Foreign Workers in accordance with the specimen copy provided in the Contract Documents;
- d) A detailed works programme showing the planned sequence of the Main Contract Works in an approved format;
- e) Detailed works method statement and Site safety management plan;
- f) Organization chart; and
- g) Cash flow projection.

Protection Works to Existing Structures including all Services:

You undertake and confirm that all details of all protection works to existing structures including services shall be submitted to the Engineer for written approval before execution. In the event that any such protection works is deemed inadequate by the Engineer, you shall promptly put up all necessary protection works as directed by the Engineer. You further agree that all additional costs thereby incurred shall be borne by you

Schedule of Unit Rates & Daywork Schedule of Rates:

The schedule of unit rates and daywork schedule of rates shall be mutually agreed by the Employer and the Contractor in writing prior to the execution of the Contract, and shall be used as a basis for the valuation of variations under Clause 13 of the Conditions of Contract.

Keppel Code of Conduct:

You undertake that you will comply with and abide by the anti-corruption and anti-bribery contractual provisions under Keppel's Code of Conduct which is included in the tender document. The Accepted Contract Amount shall be deemed to include any cost implications in connection with your full compliance with Keppel's Code of Conduct.

We acknowledge that this Letter of Acceptance creates a binding Contract between us, and we undertake to fulfil all our obligations and duties in accordance with the terms of this Contract.

Electronic-copy of this LOA have been sent to you via Procore. Please signify your acceptance of and agreement with the terms and conditions herein by returning both

Letterhead

[Specimen]

originals duly signed (and witnessed) and with every page initialed upon, within seven (7) days of the date of this LOA.

Yours faithfully

Signed by: _____ (signature)

For and behalf of: _____

Date: _____

Letterhead

[Specimen]

AGREEMENT AND ACCEPTANCE

I, _____[insert name] (NRIC No. / Passport No.: _____), in the capacity of _____ [insert designation], duly authorised to sign for and on behalf of **[Contractor]**, hereby confirm my/our agreement and acceptance of all the terms and conditions stated in this LOA.

Official Signatory:

Witnessed By:

Signature and Company Stamp

Signature and Company Stamp

Name : _____

Name : _____

Date : _____

Date : _____